

Amendment No. 1 to HB1991

Terry
Signature of Sponsor

AMEND Senate Bill No. 1926*

House Bill No. 1991

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 63-5-108(c), is amended by adding the following as a new subdivision:

(6) Prior to a dentist seeing a new or existing patient, a dental hygienist working under direct supervision of the dentist may:

- (A) Complete diagnostic radiographs;
- (B) Assess and record existing hard and soft tissue data;
- (C) Perform prophylaxis on new or existing patients; and
- (D) Apply fluoride agents.

SECTION 2. Tennessee Code Annotated, Section 63-5-108(h)(1), is amended by deleting the subdivision and substituting:

(1) Notwithstanding a law to the contrary, the practice of dental hygiene also includes prescriptive authority limited to fluoride agents, topical oral anesthetic agents, silver diamine fluoride, curodont, sealants, and desiccation therapy that:

- (A) Are not controlled substances under state and federal drug laws; and
- (B) Do not require a license from the federal drug enforcement agency.

SECTION 3. Tennessee Code Annotated, Section 63-5-108(h)(4), is amended by deleting the subdivision and substituting:

(4) The board shall determine by rule the educational and training requirements necessary for a dental hygienist to exercise prescriptive authority pursuant to this section, including a training course for the placement of silver diamine fluoride.

SECTION 4. For the purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2027, the public welfare requiring it.